

# The M.P. Niji Vishwavidyalaya (Sthapana Avam Sanchalan) Rules, 2008

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State of Madhya Pradesh - Act

The M.P. Niji Vishwavidyalaya (Sthapana Avam Sanchalan) Rules, 2008

MADHYA PRADESH

India

The M.P. Niji Vishwavidyalaya (Sthapana Avam Sanchalan) Rules, 2008

Rule THE-M-P-NIJI-VISHWAVIDYALAYA-STHAPANA-AVAM-SANCHALAN-RULES-2008 of 2008

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The M.P. Niji Vishwavidyalaya (Sthapana Avam Sanchalan) Rules, 2008

Published vide Notification R. No. 1016 CC-07-38, dated 2-1-2008, M.P. Rajpatra (Asadharan) dated 3-1-2008 at pages 10 (17-34)

In exercise of powers conferred by sub-section (1) of Section 42 of the Madhya Pradesh Niji Vishwavidyalaya (Sthapana Avam Sanchalan) Adhiniyam, 2007 (No. 17 of 2007); the State Government hereby makes the following Rules, namely:-

1.

Short title and commencement.

(1)

These rules may be called the Madhya Pradesh Niji Vishwavidyalaya (Sthapana Avam Sanchalan) Rules, 2008.

(2)

It shall come into force from the date of its publication in the official "Gazette".

2.

Definitions.

- In these rules, unless the context otherwise requires,-

(a)

"Act" means Madhya Pradesh Niji Vishwavidyalaya (Sthapana Avam Sanchalan) Adhiniyam, 2007 (No. 17 of 2007);

(b)

"Commission" means the Regulatory Commission established under Section 36;

(c)

"Higher Education Department" means the Higher Education Department, of Government of Madhya Pradesh;:

(d)

"Private University" means the Private Universities incorporated under the Act;

(e)

"Regulation" means the regulation made under the provisions of the Act;

(f)

"Sponsoring Body" means the sponsoring body as defined in clause (za) of Section 2;

(g)

"State" means the State of Madhya Pradesh;

(h)

"Visitor" means the visitor of the private universities as defined in clause (zi) of Section 2;

(i)

"Words and Expression" used but not defined in these rules shall have the same meaning as assigned to them in the Act.

3.

Application for Establishment.

(1)

Sponsoring body intending to establish a private university; shall submit the application for establishment of the private university in prescribed form as an Annexure "A" to the Regulatory Commission.

(2)

Application shall be signed by the person authorised to authenticate instruments on behalf of the sponsoring body.

(3)

Application fee of Rs. 1,00,000/- (Rs. One Lac Only) shall be sent along with application through a crossed account payee draft in the name of the "Madhya Pradesh Private Universities Regulatory Commission" payable at Bhopal.

(4)

Application for the establishment of the Private University shall be accompanied by a Project Report.

(5)

Application submitted by the sponsoring body shall be duly acknowledged by the Regulatory Commission.

4.

Establishment of Endowment Fund.

(1)

Sponsoring body intending to establish Private University shall establish an Endowment Fund after receiving the letter of intent as provided under sub-section (2) of Section 6 of the Act in accordance with the provisions of Section 11 of the Act.

(2)

The Endowment Fund shall be deposited in the fund of the Regulatory Commission under the signature of sponsoring body through crossed account payee draft in the name of the "Madhya Pradesh Niji Vishwavidyalaya Regulatory Commission" payable at Bhopal in form as prescribed in Annexure "B" and shall issue certificate of receipt by the Commission in form as prescribed in Annexure "C".

5.

Investment of Endowment Fund.

(1)

The Regulatory Commission shall invest the Endowment Fund in the form of fixed deposit in some Scheduled Bank, keeping in view of the various parameters for ensuring liquidity, security and profitability of the funds.

(2)

Proceeds from the investment shall be utilised by the commission for performing its function.

6.

Income from Endowment Fund.

(1)

The Regulatory Commission shall pay to the sponsoring body interest on the amount of the Endowment Fund at the rate at which the State Bank of India pay the interest, during the period under consideration, on the Savings Bank Account.

(2)

Income from the Endowment Fund shall be deposited in a joint Savings Bank Account opened in a Scheduled Commercial Bank. Joint Account shall be in the name of the sponsoring body and "Madhya Pradesh Private Universities Regulatory Commission".

(3)

Incomes from the Endowment Fund shall not be invested in any business connected directly or indirectly with the sponsoring body. This Income shall be used only for the development of the University.

7.

Forfeiture of Endowment Fund.

(1)

On the report of the commission or otherwise, if the State Government is satisfied that such a situation has arisen that it has to discharge its responsibility according to provisions of Section 40 or 41 of the Act, it shall issue a show cause notice to the sponsoring body of the concerned private university for forfeiture of a part or whole of the Endowment Fund along with the income on this Endowment Fund, if any, for implementing the provisions of sub section (2) of Section 11 of the Act.

(2)

Sponsoring body shall reply the show cause notice for forfeiture of the Endowment Fund within 45 days of its receipt.

(3)

After receipt of notice, if sponsoring body fails to reply within prescribed period. Commission may recommend to the State Government for permission to forfeit the Endowment Fund and after obtaining permission, the Endowment Fund shall be forfeited and credited in the Government Account under the head 01 General Education (1) "0202-Education, Sports Art and Culture (103)-University and Higher Education (0662)".

8.

Refund of Endowment Fund and its Income.

(1)

If the sponsoring body proposes to dissolve or de-establish the private university established under the provisions of the Act due to any reasons or circumstances beyond its control, the sponsoring body shall have to ensure that no student admitted in the University shall be adversely affected. The sponsoring body shall also submit to the Regulatory Commission a complete plan for completion of the courses, conduct of examination and on that basis awarding Degree, Diploma, Certificate, etc. to the students studying in the University. On being fully satisfied that the sponsoring body has completed its responsibilities towards the students according to the plans so submitted, the Regulatory Commission shall ask the sponsoring body to submit an affidavit slating therein that the sponsoring body does not bear any liabilities due to State Government, Students, and Employees of the University or tiny other person. On receiving, the Affidavit, Regulator)' Commission shall examine the facts stated therein. After being satisfied that the facts given in the Affidavit are true, Regulatory Commission shall return the Endowment Fund and income therefrom, if any, to the sponsoring body.

(2)

Regulatory Commission shall examine the affidavit submitted by the Sponsoring Body and in case of disagreement with the facts mentioned in the affidavit. Regulatory Commission shall return such a portion of the Endowment Fund and income therefrom, if any, as it considers proper, and it will not return the same till it is fully satisfied that the sponsoring body does not bear any due liabilities to the State Government, students or employees of the private university, and that

the arrangements have been made for completion of the courses, conduct of examination and on that basis awarding of degree, diploma and certificate, etc. to the students studying in the Private University :

Provided that where the amount of Endowment Fund has been deposited in the Fund of the Regulatory Commission by a sponsoring body with an intention to start a Private University after receiving letter of intent, as per sub-section (2) of Section 6 of the Act, and where the Regulatory Commission is satisfied as per Section 8 of the Act, that the proposal to establish a Private University can not be approved by it for the reasons to be recorded in writing and thus is not in a position to advise the State Government to issue a Notification for establishment of the Private University under sub-section (1) of Section 9 of the Act, the Regulatory Commission shall refund the amount of Endowment Fund and Income therefrom, if any, to the sponsoring body.

9.

Procedure for fees deposit.

(1)

Every Private University shall deposit the portion of the fees collected from the student due under the provisions of Section 12 of the Act through a crossed Account Payee Bank Draft/ Banker's cheque in the name of "Madhya Pradesh Private Universities Regulatory Commission" payable at Bhopal in the prescribed form as prescribed in Annexure-D.

(2)

Regulatory Commission shall credit the amount of fees received from the private universities within 15 days in the Treasury under the head 0)-General education (1) "0202-Education, Sports, Art and Culture, 103-University and Higher Education (0662) receipt from private universities" and information shall be kept in form as prescribed in Annexure-E and a copy of the same be transmitted to sponsoring body.

(3)

Information with regard to fees collected from the Private Universities under the provisions of these rules and deposited in Government Treasury, and penal interest, if any, imposed and deposited in the Government Treasury, and other relevant information in this regard for every financial year shall be maintained in the office of the Regulatory Commission, Penal interest information shall be kept in the form as prescribed in Annexure-1.

10.

Establishment of the Regulatory Commission.

(1)

Private Universities Regulator)' Commission shall function in accordance with the provisions of the Act and Rules made thereunder.

(2)

The Head Office of the Madhya Pradesh Private Universities Regulatory Commission shall be at Bhopal.

11.

Functions of the Regulatory Commission.

(1)

The Regulatory Commission shall perform all functions as laid down in sub-section (8) of Section 36 of the Act as well as such other functions as it may deem fit to achieve the objectives laid down in sub-section (I) of Section 36 of the Act.

(2)

Any other such matter concerning the Private Universities and Private Institutions of Higher Education which may be referred to it by the State Government.

12.

Power to make Regulations.

(1)

The Commission shall lay down the procedure for performance of its functions and for administration and management of the Commission in the form of Regulations.

(2)

Till regulations are made as provided in these rules, the Regulatory Commission may adopt such procedure for the purpose of administration and management of the Commission, or rules made by the State Government in this behalf or may make such procedure as it may deem fit.

13.

General Control of Visitor.

(1)

The Regulatory Commission shall function under the general control of the Visitor.

(2)

The Visitor in performance of his duties of general control of the Regulatory Commission may call for any paper or information relating to the affairs of the Regulatory Commission for reasons to be recorded thereon, by an order in writing, give such directions in the Regulatory Commission on that basis.

(3)

The Visitor may before issuing any direction, call comments of the Commission and may also direct for personal presentation on any matter before giving any direction.

14.

Terms and conditions of Service of Chairman and Members.

(1)

(a)

A person appointed as Chairman or Full Time Member or Part Time Member shall hold office for a term of 3 years.

(b)

Person who has held office as Chairman or Member shall be eligible for further appointment for one more term.

(c)

No person shall be eligible for the post of Chairman or Full Time Member or Part Time Member who has held or is holding an office with any of the Private Universities established under the Act or Private Universities established outside the State of Madhya Pradesh.

(2)

No person shall hold the office after the age of 65 years.

(3)

The Chairman or a Full Time Member or a Part Time Member may resign his office by writing under his hand addressed to the visitor, and shall forward a copy of that resignation letter to the Higher Education Department.

(4)

If at any time upon representation made or otherwise it appears to the Visitor that the Chairman or Member :-

(a)

has made default in performing any duty imposed on him by or under the Act; or

(b)

has acted in manner prejudicial to the interest of the Regulatory Commission; or

(c)

is incapable of managing the affairs of the Regulatory Commission, the visitor may notwithstanding the fact that the term of office has not expired, by an order in writing, recording the reasons therein, require the Chairman/Member to relinquish his office as from such date as may be specified in the order :

Provided that no such order shall be passed unless the particulars of the grounds on which such action is proposed to be taken are communicated to the Chairman and he is given reasonable opportunity of showing cause against the proposed order.

(5)

As from the date specified in the order under sub-section (4), the Chairman or Member shall be deemed to have relinquished the office and the office of the Chairman or Member shall fall vacant.

(6)

If a casual vacancy occurs in the office of the Chairman or Full Time Member or Part Time Member, whether by reason of death, resignation or otherwise, the vacancy shall be filled by a fresh appointment :

Provided that the Education Department may, in consultation with the visitor, fill any casual vacancy of the office of the Chairman by appointing any Full Time Member for not exceeding two months.

(7)

During the absence of the Chairman due to leave, illness, or any other cause, the Full Time Member nominated by the Chairman shall discharge functions and duties of the Chairman.

(8)

The office of the Chairman as well as all the Full Time Member shall be whole time and salaried one.

(9)

The Full Time Member shall perform such functions as may be assigned to them by the Chairman from time to time.

(10)

The Chairman shall receive a consolidated salary of Rs. 250(H)/-(Rupees Twenty Five thousand only) per month irrespective of the pension and pension equivalent to gratuity that may be admissible to him :

Provided that, if the Chairman is not getting any pension he shall be entitled to receive a salary as prescribed by Finance Department and dearness allowance and other allowances as admissible to Class-I Officer of the State Government from time to time.

(11)

The Chairman shall be entitled to free furnished residential accommodation at the Headquarters of the Regulatory Commission, maintained by the State Government or accommodation provided by the Government.

(12)

The Chairman shall be provided with one Car alongwith one Driver, Telephones with STD facility in office and at his residence.

(13)

The Full Time Member shall receive a consolidated salary as prescribed by Finance Department irrespective of pension and pension equivalent to gratuity that may be admissible to him

Provided that if a Member is not getting pension then he shall be entitled for salary as prescribed by Finance Department with Dearness Allowance and other allowances admissible to Class-I Officer of the State Government

(14)

The Full Time Member shall be entitled to House Rent Allowance as admissible to Class-I Officer of the State Government along with Telephones with STD facility in office and at his residences.

(15)

The Chairman and Full Time Members shall be entitled to 13 days casual leave and one month's earned leave/medical, leave in one calendar year. Leave Record of the Chairman and the Full Time Member shall be kept in the office of the Regulatory Commission.

(16)

During travel for the working of the Regulatory Commission or the Government the Chairman and Full Time Members of the Commission shall be entitled to Traveling Allowance and Dearness Allowance at the rates admissible and applicable to Class-1 Officer of the State Government and in addition to reimbursement for staying as prescribed by Finance Department.

(17)

The Chairman and Full Time Members shall be entitled to such medical benefits as may be admissible to Class-1 Officer of the State Government or to Medi-claim in lieu thereof, as may be decided by the Education Department.

(18)

The Chairman and the Full Time Members shall not receive any retirement benefits such as pension, gratuity or both from the Regulatory Commission.

(19)

A Part Time Member shall be entitled to sitting fee of Rs. 1000/- (Rupees One Thousand only) per day and Traveling Allowance at the rates applicable to Class-I Officers of the State Government and in addition to, for the period spent on duty, reimbursement for staying prescribed by Finance Department.

15.

Meeting of the Commission.

(1)

The Regulatory Commission shall meet at such time and place as may be decided by the Chairman.

(2)

The Chairman and in his absence, senior most Full Time Member/ Part Time Member of the Commission shall preside over the meetings of the Commission.

(3)

All questions which come up before any meeting of the Commission shall be decided by a majority of the votes of the members present and voting :

Provided that if, any Member is not appointed then Chairman shall decide the questions by passing Speaking Orders/ Resolutions :

Provided further that the Chairman and only one Member is present in the meeting then the decision shall be taken by Chairman by speaking orders after recording the views of the Member present in the meeting.

(4)

Minutes of every meeting of the Regulatory Commission shall be recorded by one of the Full Time Members of the Commission or by an officer of the Commission authorised for the purposes by the Chairman. The minutes shall be valid by signature of the Chairman/Officer authorised by Government and shall be kept as a permanent record of the Regulatory Commission.

16.

Vacancy etc. not to invalidate the proceedings of the Commission.

- No act or proceedings of the Commission shall be invalidated merely by reasons of-

(a)

any vacancy in or any defect in the constitution of the Commission; or

(b)

any defect in the appointment of a person acting as a Member of the Commission; or

(c)

any irregularity in the procedure of the Commission, if not affecting the merits of the case.

17.

Temporary association of persons with the Commission for particular purposes.

(1)

The Regulatory Commission may associate with itself any person whose assistance or advice it may desire in carrying out any of the provisions of the Act or rules made thereunder.

(2)

A person associated with it by the Commission under sub-rule (1) above for any purpose may be invited by the Commission to take part in the discussions relevant for the purpose, or in any meeting of the Commission in which the relevant purpose is included as any agenda item of the meeting of the Commission, but such person shall not have a right to vote at a meeting of the Commission and shall not be a member for any other purpose.

(3)

A person associated with the Commission for the purpose of these rules shall be paid a sitting fee of Rs. 1000/- (Rupees One thousand only) per day and traveling allowance at the rates admissible and applicable to Class-I Officer of the State Government.

18.

Authentication of Orders and other instruments of the Regulatory Commission.

(1)

All orders and decisions of the Commission shall be authenticated by the signature of the Secretary and till Secretary is appointed by the Chairman or any person authorised by the Chairman in this behalf.

(2)

All other instruments issued by the Commission shall be authenticated by a signature of the Secretary and till Secretary is appointed by the Chairman or any other person of the Commission authorised in a like manner in this behalf.

19.

Payment to the Commission.

- The Government of Madhya Pradesh may, after due appropriation made by the State Legislature by law in this behalf, pay to the Regulatory Commission in each financial year such sums as may be considered necessary for the performance of functions of the Commission under the Act.

20.

Fund of the Regulatory Commission.

(1)

The Regulatory Commission shall have its own Fund and all sums which may from time to time be paid by the State Government and fees collected/ received from the private college/ institutions and all the receipts of the Commission (including Endowment Fund, Additional Fund any sum which any other authority or person may hand over to the

Commission) shall be carried to the Fund and all payments of the Commission shall be made therefrom.

(2)

All the money belonging to the Fund shall be deposited in a Scheduled Bank as defined in the Reserve Bank of India Act, 1934 (No. 2 of 1934).

(3)

The Commission may spend such sum as it may think fit for performing its functions under the Act, and such sums shall be treated as an expenditure payable out of the Fund of the Regulatory Commission, the fund shall be audited every year.

21.

Budget.

- The Regulatory Commission shall prepare in such form and at such time each year as may be decided by the Commission, a budget in respect of the financial year next ensuing an estimated receipts and expenditures and copies thereof shall be forwarded to the Higher Education Department with a view to obtain due appropriation by the State Legislative Assembly and payments thereafter of appropriate sums to the Regulatory Commission shall be audited and the record of accounts shall be placed as prescribed in Rule 19.

22.

Annual Report.

- The Regulatory Commission shall prepare once in every financial year, in such form and at such time as may be decided by the Commission, an Annual Report giving true and full account of its activities during the previous year and copies thereof shall be forwarded to the Higher Education Department. The Higher Education Department shall cause the same to be laid before the State Legislative Assembly.

23.

Accounts and Audit.

(1)

The Regulatory Commission shall cause to be maintained such Books of Account and other accounts in relation to its accounts in such form and in such manner as may be determined by the Commission/State Government.

(2)

The Regulatory Commission shall, as soon as may be after closing its Annual Account, prepare a statement of account, in such form and by such date as the Regulatory Commission may determine.

(3)

The accounts of the Regulatory Commission shall be audited by a Chartered Accountant immediately after closing of the financial year.

(4)

The accounts of the Regulatory Commission as certified by the Chartered Accountant together with the Audit Report thereon shall be forwarded to the Higher Education Department and the Higher Education Department shall cause the same to be laid before the State Legislative Assembly.

24.

Staff, Accommodation and other Facilities of Regulatory Commission.

(1)

The Regulatory Commission shall appoint on deputation or otherwise such number of officers and other employees as may be necessary for the purpose of enabling it to efficiently discharge its functions under the Act or rules made thereunder.

(2)

For its officers and employees, the Regulatory Commission shall take decision and accordingly acquire accommodation, equipments and other facilities as it may consider necessary.

25.

Power to remove difficulty.

- If any difficulty arises in giving effect to the provisions of these Rules or such matters which are not covered under these rules, on the recommendation of Commission, the State Government may, by order published in the official Gazette not inconsistent with the provisions of Act, and these rules, remove such difficulty.

26.



Repeal and Savings.

- All rules corresponding to these Rules, Orders, Circulars and Resolutions, if any, and in force immediately before the commencement of these rules, are hereby repealed in respect of matters covered by these rules :

Provided that any order made or action taken under the Rules, Orders, Circulars and Resolutions so repealed, shall be deemed to have been made or taken under the corresponding provisions of these Rules.

Annexure-A

Application format for Establishment of a Private University in the State of Madhya Pradesh

[Under the provisions given in Section 4 of the Madhya Pradesh Private Universities (Sthapana Avam Sanchalan) Adhiniyam, 2007]

(1)

Details of Sponsoring Body

(Detailed information given in section ..... of the Project Report).

(a)

Name

(b)

Address

(c)

Pin Code

(d)

Telephone No. (With STD Code)

(e)

Fax No.

(f)

E-mail.

(2)

Particulars of registration of the sponsoring body and its constitution and bye laws.

(Detailed information given in section ..... of the Project Report).

(a)

The sponsoring body is a Registered Society under Madhya Pradesh Society Registrikaran Adhiniyam, 1973 (No. 44 1973); or

(b)

Is a Public Trust; or

(c)

Is a Company Registered under Section 25 of the Companies Act, 1956 (No. 1 of 1956).

(d)

Whether the sponsoring body is a body which is not registered under any of the arrangements as provided under (a), (b) and (c) but is registered under another Act which is for the time being in force. If yes particulars of that Act.

(e)

Attach certified copies of the Registration.

(f)

Attach Constitution and Bye-laws.

(3)

Attach certified copies of the audited accounts of the sponsoring body for the past 3 years.

(Detailed information given in section ..... of the project Report).

(4)

Information regarding Financial resources of the sponsoring body.

(Detailed information given in section ..... of the Project Report).

(5)

Name of the proposed university.

(Detailed information given in section ..... of the Project Report).

(6)

Full address where the main campus of the proposed university to be established.

(Detailed information given in section .....;... of the Project Report).

(7)

Objectives of the proposed University.

(Detailed information given in section ..... of the Project Report).

(8)

Whether proposed University would demand minority status under Article 30 of the Constitution? If yes, give details.

(Detailed information given in section ..... of the Project Report).

(9)

Whether the Main Campus of the University will be located in an area, which is not a general area ?

(Detailed information given in section ..... of the Project Report).

(a)

Whether the main campus of the University proposed to be established will be in a Scheduled Area? If yes, attach proof from the Competent Authority to the effect that the proposed location area is a Scheduled Area.

(b)

Whether the main campus, of the University proposed to be established will be within the Municipal Corporation ? If yes, attach proof from the Competent Authority to the effect that the proposed location is within the Municipal Corporation.

(10)

Details about the land for the use of the proposed University.

(Detailed information given in section ..... of the Project Report).

(a)

Details of the land for full use of the university, if available on the date of application-

(i)

Ownership of land (with necessary proof)

(ii)

Area of land

(iii)

A map of the land

(b)

Land that will be acquired after receipt of the letter of intent,-

(i)

Ownership of land (with necessary proof)

(ii)

Area of land

(iii)

A map of the land,

(iv)

Land will be acquired from whom ?

(v)

Financial arrangement for acquisition of land.

(11)

(a)

Construction of buildings, development of structural amenities and present infrastructure facilities.

(b)

Plan for procurement of equipments.

(c)

Outline of phase-wise programme for the coming 5 years.

(12)

Details of phased outlays of Capital Expenditure proposed for 5 years and its sources of finance.

(Detailed information given in section ..... of the Project Report).

(13)

Nature of faculties (Name)

(Detailed information given in section of the Project Report).

(a)

Names of faculties like Science, Arts, Commerce, Law, Professional Education etc.

(b)

Course under each faculty like graduate, post-graduate etc.

(c)

Relevance of each course in the context of development of the State.

(d)

Targeted students strength in each course.

(e)

Proposed phased programmes for courses for next 5 years.

(f)

For each course, give information whether for starting it, prior approval from Central Regulatory Body or/and State Regulatory Body is necessary. If yes, give details of the same.

If prior approval has not been obtained, give details mentioning the provision under which Central/ State Act, prior permission is necessary.

(14)

Experience and expertise (if any), in the concerned disciplines at the command of the sponsoring body.

(Detailed information given in section ..... of the Project Report).

(15)

Availability of academic facilities required for the courses of study and research.

(Detailed information given in section t of the Project Report).

(a)

Teaching staff

(b)

Technical and Non-technical staff

(c)

Equipments and laboratories.

(16)

Details about the expenditure on each of the proposed courses.

(Detailed information given in section of the Project Report).

(a)

Estimate of recurring expenditure

(b)

Sources of finance

(c)

Estimated expenditure per student.

(17)

Scheme for mobilizing resources

(Detailed information given in section ..... of the Project Report).

(a)

Cost of capital

(b)

Manner of repayment.

(18)

Scheme for generation of funds internally from various sources.

(Detailed information given in section ..... of the Project Report).

(a)

Fee from Students

(b)

Consultancy Services

(c)

Other activities relating to the objects of the private university.

(19)

Proposed fee structure for different courses, concessions, and Scholarships

(Detailed information given in section ..... of the Project Report).

(a)

For General Category

(b)

For economically weaker sections

(c)

For Scheduled Castes, Scheduled Tribes and O.B.C.

(20)

System proposed to be followed for admissions to the courses of study.

(Detailed information given in section . of the Project Report).

(21)

System proposed to be followed for appointment of Teachers and other Employees

(Detailed information given in section . of the Project Report).

(22)

Mode of imparting education.

(Detailed information given in section . of the Project Report).

(a)

Conventional Method

(b)

Distance Education Method

(c)

Both, as above.

(23)

In case Distance Education is proposed, then names of the proposed study centres and their details

(Detailed information given in section of the Project Report).

(24)

Details of programmes related to local needs, nature of the specialised teaching, training and research activities

(Detailed information given in section of the Project Report).

(25)

Programmes for the benefit of Farmers, Women and Industries especially located in this State.

(Detailed information given in section ..... of the Project Report).

(26)

Available or/proposed other facilities :

(Detailed information given in section of the Project Report).

(a)

Hostel facility for the students (Boys/Girls)

(b)

Playgrounds

(c)

National Cadet Corps, Scouts and Guides, National Service Scheme etc.

(27)

Details of the proposed campus in the Scheduled areas of the State.

(Detailed information given in section ..... of the Project Report).

(28)

Justification for the necessity of establishing the proposed Private University.

(Detailed information given in section ..... of the Project Report).

(29)

If the sponsoring body had established erstwhile university, then full details giving number and date of the notification regarding establishment and serial number in the Schedule-1 of the earlier Act. Also mention whether Endowment Fund or/and additional fund was deposited or is in deposit ? If yes, then give full particulars with proof.

(Detailed information given in section.....of the Project Report).

(30)

Details of application fee (mention) :

(Detailed information given in section of the Project Report).

(a)

Amount in the crossed account payee demand draft.

(b)

Name of the bank which has issued the demand draft.

(c)

Date and Number of the demand draft.

(d)

Mention the name of the Sponsoring Body and the name of the proposed University on the back of the Demand Draft.

The above application for establishment of ..... (mention name of the proposed University) under the provisions of Madhya Pradesh Private Universities (Sthapana Avam Sanchalan) Act, 2007 (

No. 17 of 2007

) is submitted hereby on behalf of ..... (name of the Sponsoring Body). Detailed particulars of every point of this application is given in the Project Report. Detailed information may be seen in the Sections of the Project Report referred at every point.

I certify that :-

(a)

I am authorised to submit the application on behalf of the Sponsoring Body,-

..... (name of the Sponsoring Body).

(b)

The Sponsoring Body has Resolved to establish a Private University by name of ..... and to follow in this connection all provisions made in the Madhya Pradesh Private Universities Act, 2007 (

No. 17 of 2007

) and such other rules as the State Government may make in this behalf, and has also Resolved to follow the instructions that will be issued by the Madhya Pradesh Private Universities Regulatory Commission from time to time (Attach a copy of the Resolution as Annexure).

Place

:

Signature

Date

:

Name

and Designation

Name

of Sponsoring Body.

Signature, name and address of 2 Witnesses,-

(1)

Signature

Name

Address

(2)

Signature

Name

Address

Explanatory note for submitting application for establishment of a Private University. - (1) Before applying for establishment of a University in the State of Madhya Pradesh in Private Sector, please read carefully the provisions made in the Madhya Pradesh Private Universities (Sthapana Avam Sanchalan) Act, 2007 (

No. 17 of 2007

).

(2)

The copy of the Act and the Rules can be obtained by any person from the Office of the Madhya Pradesh Private Universities Regulatory Commission, Bhopal by producing a crossed Account Payee draft for Rs. 1000/- or by post by sending a crossed Account Payee draft for Rs. 1050/- in the name of the "Madhya Pradesh Private Universities Regulatory Commission" payable in Bhopal.

(3)

The Sponsoring Body or its Representative can seek guidance with regard to the establishment of the University from the Regulatory' Commission, Guidance session shall be arranged only after determining the time.

Annexure-B

Application for Establishment of Endowment Fund

To,

Chairman,

Madhya Pradesh Private Universities Regulatory Commission,

Bhopal.

(1)

Details of Sponsoring Body :

(a)

Name

(b)

Address

(c)

Pin Code

(d)

Telephone No. (with STD Code)

(e)

Fax No.

(f)

E-mail

(2)

Name of the proposed private university.

(3)

Full address where the main campus of the proposed Private University is to be established.

(4)

Location of main campus of the private university.

(a)

Whether the main campus of the university proposed to be established will be established in a scheduled area ? If yes, attach proof from the Competent Authority to the effect that the proposed location area is a scheduled area.

(b)

Whether the main campus of the university proposed to be established will be within the Municipal Corporation Limits of Bhopal ? If yes, attach proof from the Competent Authority to the effect that the proposed location is within the Municipal Corporation Limits of Bhopal.

(5)

Details of the Endowment Fund of the erstwhile university (mention)\*

(a)

Name of the erstwhile university.

(b)

Name of the sponsoring body of the erstwhile university

(c)

Notification number and date under which erstwhile university was established.

(d)

Serial number in Schedule-I of the earlier Act of the erstwhile university.

(e)

Whether main campus of the erstwhile university was established in the scheduled area ?

(f)

Amount of Endowment Fund of the erstwhile university which is in deposit with the Regulatory' Commission. (Give proof by attaching a photo copy of the Bank pay-in-Slip).

(g)

Net amount of the Endowment Fund that the sponsoring body proposes to deposit after adjusting the Endowment Fund of the erstwhile university, as provided in proviso to clause (b) of sub-section (I) of Section 11 of the Act.

\* This information is to be furnished only by those sponsoring bodies which had established erstwhile university. Other sponsoring bodies may furnish Nil here.

(6)

Details of Endowment Fund (mention) :

(a)

Amount of Endowment Fund.

(b)

Bank Draft Number, full particulars about the name of the Bank including its Branch name, Branch Number and Branch Code which has issued the Bank Draft.

(c)

Date of issue of Bank Draft.

(d)

Name and Designation of the person who has sent the amount of the Endowment Fund on behalf of the Sponsoring Body.

(e)

On the back of the Demand Draft, mention the name of the Sponsoring Body and the name of the proposed university.

(7)

Proof of opening the Savings Bank Account in the name of Sponsoring Body for depositing income from Endowment Fund,

(a)

Name of the Scheduled Bank and its branch in which the savings bank account has been opened.

(b)

Amount with which the savings bank account has been opened. Attach attested photo copy of deposit slip issued by the bank as annexure.

(c)

Name and Designation of the person who will operate the savings bank account on behalf of the sponsoring body,

(d)

Savings bank account number and the date of establishment of this account.

(8)

Details of letter of intent (mention) :

(a)

Number and date of issue,

(b)

Date of receiving by the sponsoring body,

(c)

Attach a photo copy of letter of intent,

(9)

Any other information that the sponsoring body would like to provide or any request that the sponsoring body would like

to make in the context of the establishment of the Endowment Fund.

The above application for establishment of Endowment Fund for ..... (mention name of the proposed University) under the provisions of Madhya Pradesh Private Universities (Sthapana Avam Sanchalan) Act. 2007 (No. 17 of 2007) is submitted hereby on behalf of the ..... (name of the Sponsoring Body).

I certify that :-

(a)

I am authorised to submit the application for establishment of the endowment fund on behalf of the.....(name of the Sponsoring Body),

(b)

The Sponsoring Body has Resolved to establish a Private University by name of.....and to deposit Rs..... (Rupees ..... ) as endowment fund and to follow in this connection all provisions made in (he Madhya Pradesh Private Universities (Sthapana Avam Sanchalan) Act, 2007 (

No. 17 of 2007

) and such other rules as the State Government may make in this behalf, and has also Resolved to follow the instructions that will be issued by the Madhya Pradesh Private Universities Regulatory Commission from time to time. (Attach a copy of the Resolution as Annexure).

Place

:

Signature .....

Date

:

Name

and Designation .....

Name

of Sponsoring Body (with seal) .....

Signature, name and address of 2 Witnesses :-

(1)

Signature .....

Name.....

Address.....

(2)

Signature .....

Name.....

Address.....

Annexure-C

Madhya Pradesh Private Universities Regulatory Commission, Bhopal

Phone No. ....

Fax No. ....

E-mail .....

No. ....

Date .....

Sub. - Certificate for the "Endowment Fund" deposited in the Account of Madhya Pradesh Private Universities Regulatory Commission, Bhopal.

Ref. - See Section 6 of the Madhya Pradesh Private Universities (Sthapana Avam Sanchalan) Act. 2007.

Sl. No.

Name

of the University

Reference

of letter of intent issued by Higher Education Department, Government,

of Madhya Pradesh

Area



of the establishment of proposed private university (General/  
Scheduled Area)

Amount

Particulars

of Demand Draft deposited

(1)

(2)

(3)

(4)

(5)

(6)

Place

:

Signature .....

Date

:

Name

and Designation .....

Name

of Sponsoring Body (with seal) .....

Annexure-D

Statement of Fees Collected and Sent to the Regulatory Commission

Name of the University .....

Address with Pin Code .....

Phone No. with STD Code ..... Fax No. ....

Statement No. .... Year ..... E-mail .....

Name of the month for which the fee collection relates .....

Sl.No.

Name

of the Campus/ Study Center

Address

of Campus/ Study Center

Name

of Course

Number

of enrolled students

(1)

(2)

(3)

(4)

(5)

Rate

of fees per month

Total

fees collected

1%

column No. (7)

Remarks

(6)

(7)

(8)

(9)

Total of column (7): Rs (in figures) Rs. ....(in words)

Total of column (8): Rs. ....(in figures) Rs. ....(in words)

(1)

Name of the hank along with its branch which has issued the Demand Draft .....

(2)

Demand Draft No. ....

(3)

Date of issue of Demand Draft .....

Certified that the statement of fees collection as given here is verified by us and is correct.

Date:

Registrar

Chief

Finance and Accounts Officer

Explanatory Note. - (1) Column No. (4) for which the Mention name of the course for which the fee is collected from the student.

(2)

Column No. (6) "Fees means" collection made by the university from the students by whatever name it may be called but which is not refundable.

Annexure-E

Madhya Pradesh Private Universities Regulatory Commission, Bhopal

Phone No. ....

Fax No. ....

E-mail .....

No. ....

Date.....

Sub. - Statement of fees credited to the consolidated fund of the State of Madhya Pradesh.

Statement of Fee Amount Deposited in Treasury

Sl.No.

Name

of the University

Month

in which fees was collected

Statement

Number and year

Amount

Remarks

(1)

(2)

(3)

(4)

(5)

(6)

Total of column (5): Rs.....(in figures) Rs.....(in words)

(1)

Name of payee : Government of Madhya Pradesh, Bhopal .....

(2)

Head under which the amount is to be credited in the consolidated fund of the State.....

(3)

Name of the Treasury in which amount is deposited.....

(4)

No. of Account payee cheque .....

(5)

Date of issue of cheque .....

(6)

Name of the bank on which the cheque is drawn .....

(7)

Name and designation of the officer of Regulatory Commission signing the Cheque.....

(1)

Signature .....

(2)

Signature .....

Designation

.....

Designation.....

Madhya

Pradesh Private University

Regulatory

Commission, Bhopal

Explanatory Note. - (1) Column No. (4) : Information about the fees collected in each month and sent to the Regulatory Commission is contained in the Form : Information for every month in the Form shall be numbered by the Concerned University as Statement Number. Private University shall also mention the year. This statement number and year should be mentioned in this column in the office of the Regulatory Commission.

Annexure-F

Madhya Pradesh Private Universities Regulatory Commission, Bhopal

Phone No. ....

Fax No.....

E-mail.....

No. ....

Date.....

Sub. - Statement of Penal interest credited to the consolidated fund of the State of Madhya Pradesh.

Sl. No.

Name

of the University

Resolution

Number of the Regulatory Commission empowering to impose and collect the penal interest

Amount

Remarks

(1)

(2)

(3)

(4)

(5)

Total of Column (4): Rs ..... (in figures) Rs (in words)

(1)

Name of Payee : Government of Madhya Pradesh. Bhopal.....

(2)

Head under which the amount is to be credited in the consolidated fund of the State.....

(3)

Name of the Treasury in which amount is deposited.....

(4)

No. of Account Payee Cheque .....

(5)

Date of issue of Cheque.....

(6)

Name of the bank on which the cheque is drawn.....

(7)

Name and designation of the Officer of Regulatory Commission signing the Cheque .....

(1)

Signature .....

(2)

Signature .....

Designation

.....

Designation .....

Madhya

Pradesh Private University

Regulatory

Commission, Bhopal

Related AI tags, queries and research notes

Translation